

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JAHSHON JOSEPH,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. MATTHEW SOLOMITO,
Shield No. 25805, Individually and in his Official Capacity,
P.O. TONY CUCCO, Shield No. 17359, Individually and in his
Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-
10, Individually and in their Official Capacity (the name John
Doe being fictitious, as the true names are presently unknown),

Defendants.

-----X

SUMMONS

Jury Trial Demanded

Plaintiff designates Kings
County as the place of trial.

The basis of venue is:
CPLR § 504(3)

To the above-named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
October 24, 2018

COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

TO:

ZACHARY W. CARTER, Corporation Counsel of the City of New York
Attorney for Defendant, THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

P.O. MATTHEW SOLOMITO, Shield No. 25805
75th Precinct Detective Squad
1000 Sutter Ave. Brooklyn, NY 11208

P.O. TONY CUCCO, Shield No. 17359
75th Precinct
1000 Sutter Ave. Brooklyn, NY 11208

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JAHSHON JOSEPH,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, P.O. MATTHEW SOLOMITO, Shield No. 25805, Individually and in his Official Capacity, P.O. TONY CUCCO, Shield No. 17359, Individually and in his Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Jury Trial Demanded

BASIS FOR VENUE:

CPLR § 504(3)

Defendants.

-----X

Plaintiff JAHSHON JOSEPH, by his attorneys, COHEN & FITCH LLP, complaining of the defendants, respectfully alleges as follows:

FACTS

1. Plaintiff JAHSHON JOSEPH is an African American male and has been at all relevant times a resident of Kings County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, the individually named defendants, P.O. MATTHEW SOLOMITO, Shield No. 25805, P.O. TONY CUCCO, Shield No. 17359, and POLICE OFFICERS “JOHN DOE” #1-10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

The Incident

8. On or about October 26, 2016, in the County of Kings, City, and State of New York, plaintiff JAHSHON JOSEPH was lawfully walking in the vicinity of Logan St. and Sutter Ave. Brooklyn, NY.

9. At the aforesaid time and place, plaintiff was not acting any manner to illicit suspicion or reasonable cause to believe that he had committed or was about to be committing any criminal offenses and/or violations.

10. Nonetheless, employees of the NYPD – specifically, defendant officers SOLOMITO, CUCCO, and/or “JOHN DOE” #1-10 – accosted him, told him to “freeze,” and then directed him and several others to line up against a gate.

11. Plaintiff complied with these directives and immediately thereafter, defendant officers SOLOMITO, CUCCO, and/or “JOHN DOE” #1-10, began to search his person and effects. No contraband was found as a result of this search.

12. Subsequently, defendant officers SOLOMITO, CUCCO, and/or “JOHN DOE” #1-10, forcefully slammed plaintiff to the ground and then began to violently assault him by kicking and punching him about the body and kneeling him in the back, causing him physical injuries.

13. Immediately thereafter, and despite the lack of probable cause to believe Mr. Joseph had committed any crimes or infractions, and regardless of the fact that defendant officers SOLOMITO, CUCCO, and/or “JOHN DOE” #1-10, did not find any contraband on plaintiff’s person, plaintiff was nonetheless placed under arrest by said defendants and his arms were handcuffed tightly behind his back.

14. At no time on October 26, 2016, did defendants SOLOMITO, CUCCO, and/or “JOHN DOE” #1-10, possess reasonable suspicion to stop, question, and/or frisk plaintiff.

15. At no time on October 26, 2016, did defendants SOLOMITO, CUCCO, and/or “JOHN DOE” #1-10, possess reasonable suspicion and/or probable cause to stop and/or search plaintiff’s person.

16. At no time on October 26, 2016, did defendants SOLOMITO, CUCCO, and/or “JOHN DOE” #1-10, possess probable cause to arrest plaintiff.

17. At no time on October 26, 2016, did defendants SOLOMITO, CUCCO, and/or “JOHN DOE” #1-10, possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

18. At no time on October 26, 2016, was the force used against plaintiff by defendants SOLOMITO, CUCCO, and/or “JOHN DOE” #1-10, reasonable.

19. Thereafter, said defendant officers placed Mr. Joseph in police vehicle and transported him to a nearby police precinct.

20. Subsequently, upon arrival at said precinct, plaintiff was subjected by defendants SOLOMITO, CUCCO, and/or “JOHN DOE” #1-10, to an invasive strip search, confined in a holding cell for several hours, fingerprinted, photographed, interrogated, and charged with Criminal Possession of a Weapon, Criminal Possession of a Firearm, Resisting Arrest, and Disorderly Conduct.

21. In addition, while at the precinct, plaintiff requested medical attention from the defendant officers, but none was provided.

22. Subsequently, plaintiff was transported to Central Booking where he was searched, subjected to a retina scan (“eye scan”), and further detained in a holding cell before his arraignment. Following his arraignment, bail was set and plaintiff was further detained on Rikers Island.

23. At no time on October 26, 2016, did Mr. Joseph, possess any weapons and/or firearms, nor did he act in a disorderly manner, nor did he resist arrest, nor did he commit any crimes, violations, and/or infractions, nor did he behave unlawfully in any way, nor did the above-named defendants possess probable cause for his arrest.

24. In connection with plaintiff's arrest, defendants filled out false and/or misleading police reports and forwarded them to prosecutors at the Kings County District Attorney's Office ("KCDA") – namely, defendant CUCCO falsely stated that he observed Mr. Joseph crossing the street outside of the crosswalk causing vehicular traffic to slow or stop. Defendant CUCCO further falsely stated that Mr. Joseph was in possession of a loaded firearm and a quantity of ammunition. In addition, defendant SOLOMITO falsely stated that Mr. Joseph refused to submit to a lawful arrest by pushing and shoving him and by flailing and stiffening his arms to prevent the defendant officers from handcuffing him. Upon information and belief, false information was also provided to KCDA by defendants "JOHN DOE" #1-10.

25. Thereafter, defendants SOLOMITO, CUCCO, and/or "JOHN DOE" #1-10, repeatedly gave the aforementioned false and misleading information regarding the facts and circumstances of plaintiff's arrest.

26. As a result of his unlawful arrest, plaintiff JAHSHON JOSEPH spent approximately six (6) days in custody.

27. Thereafter, as a result of his unlawful arrest, plaintiff was forced to make multiple court appearances – approximately three (3) – until on or about November 22, 2016, when all charges against him were dismissed in their entirety.

28. In addition, as a result of the foregoing, plaintiff was fired from his job causing him to lose wages and suffered physical injuries to, *inter alia*, his fingers, shoulder, wrist, back, and face.

29. As a result of the foregoing, plaintiff JAHSHON JOSEPH sustained, *inter alia*, physical injuries, mental anguish, shock, fright, apprehension, embarrassment, humiliation, loss of his liberty, lost wages, and deprivation of his constitutional rights.

FEDERAL CLAIMS**FIRST CLAIM FOR RELIEF**
DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

30. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

31. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

32. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

33. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

34. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and corrections officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department and the New York City Department of Corrections, all under the supervision of ranking officers of said department.

35. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF ARISING
FALSE ARREST UNDER 42 U.S.C. § 1983**

36. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

37. As a result of the aforesaid conduct by defendants SOLOMITO, CUCCO, and/or “JOHN DOE” #1-10, plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

38. As a result of the foregoing, plaintiff’s liberty was restricted for an extended period of time, he as put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

**THIRD CLAIM FOR RELIEF
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL
UNDER 42 U.S.C. § 1983**

39. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

40. Defendants SOLOMITO, CUCCO, and/or “JOHN DOE” #1-10, created false evidence against plaintiff.

41. Defendants SOLOMITO, CUCCO, and/or “JOHN DOE” #1-10, forwarded false evidence and false information to prosecutors in the Kings County District Attorney’s office.

42. Defendants SOLOMITO, CUCCO, and/or “JOHN DOE” #1-10, misled the prosecutors by creating false evidence against plaintiff and thereafter providing false testimony throughout the criminal proceedings.

43. Specifically, defendant CUCCO falsely stated that he observed Mr. Joseph crossing the street outside of the crosswalk causing vehicular traffic to slow or stop. Defendant

CUCCO further falsely stated that Mr. Joseph was in possession of a loaded firearm and a quantity of ammunition. In addition, defendant SOLOMITO falsely stated that Mr. Joseph refused to submit to a lawful arrest by pushing and shoving him and by flailing and stiffening his arms to prevent the defendant officers from handcuffing him. Upon information and belief, false information was also provided to KCDA by defendants "JOHN DOE" #1-10.

44. In creating false evidence against plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants SOLOMITO, CUCCO, and/or "JOHN DOE" #1-10, violated plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

45. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FOURTH CLAIM FOR RELIEF
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

46. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

47. Defendants SOLOMITO, CUCCO, and/or "JOHN DOE" #1-10, misrepresented and falsified evidence before the Kings County District Attorney.

48. Defendants SOLOMITO, CUCCO, and/or "JOHN DOE" #1-10, did not make a complete and full statement of facts to the District Attorney.

49. Defendants SOLOMITO, CUCCO, and/or "JOHN DOE" #1-10, withheld exculpatory evidence from the District Attorney.

50. Defendants SOLOMITO, CUCCO, and/or “JOHN DOE” #1-10, were directly and actively involved in the initiation of criminal proceedings against plaintiff JAHSHON JOSEPH.

51. Defendants SOLOMITO, CUCCO, and/or “JOHN DOE” #1-10, lacked probable cause to initiate criminal proceedings against plaintiff JAHSHON JOSEPH.

52. Defendants SOLOMITO, CUCCO, and/or “JOHN DOE” #1-10, acted with malice in initiating criminal proceedings against plaintiff JAHSHON JOSEPH.

53. Defendants SOLOMITO, CUCCO, and/or “JOHN DOE” #1-10, were directly and actively involved in the continuation of criminal proceedings against plaintiff JAHSHON JOSEPH.

54. Defendants SOLOMITO, CUCCO, and/or “JOHN DOE” #1-10, lacked probable cause to continue criminal proceedings against plaintiff JAHSHON JOSEPH.

55. Defendants SOLOMITO, CUCCO, and/or “JOHN DOE” #1-10, acted with malice in continuing criminal proceedings against plaintiff JAHSHON JOSEPH.

56. Defendants SOLOMITO, CUCCO, and/or “JOHN DOE” #1-10, misrepresented and falsified evidence throughout all phases of the criminal proceedings.

57. Specifically, defendant CUCCO falsely stated that he observed Mr. Joseph crossing the street outside of the crosswalk causing vehicular traffic to slow or stop. Defendant CUCCO further falsely stated that Mr. Joseph was in possession of a loaded firearm and a quantity of ammunition. In addition, defendant SOLOMITO falsely stated that Mr. Joseph refused to submit to a lawful arrest by pushing and shoving him and by flailing and stiffening his arms to prevent the defendant officers from handcuffing him. Upon information and belief, false information was also provided to KCDA by defendants “JOHN DOE” #1-10.

58. Notwithstanding the perjurious and fraudulent conduct of defendants SOLOMITO, CUCCO, and/or "JOHN DOE" #1-10, the criminal proceeding against plaintiff was dismissed in its entirety on or about November 22, 2016.

59. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FIFTH CLAIM FOR RELIEF
UNLAWFUL STRIP SEARCH UNDER 42 U.S.C. § 1983

60. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein

61. Plaintiff was invasively strip-searched twice by defendants, SOLOMITO, CUCCO, and/or "JOHN DOE" #1-10, without an individualized reasonable suspicion that plaintiff was concealing contraband based on the particular characteristics of the plaintiff and/or the circumstances of his arrest.

62. As a result of the aforesaid conduct by defendants SOLOMITO, CUCCO, and/or "JOHN DOE" #1-10, plaintiff's persons was illegally and improperly searched without consent, a valid warrant, probable cause, and a specific articulable factual basis supporting a reasonable suspicion and/or probable cause to believe plaintiff secreted contraband, evidence, or had a weapon inside a body cavity warranting such a search, in violation of his constitutional rights as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.

63. As a result of the foregoing, plaintiff was deprived of his Constitutional rights and has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

SIXTH CLAIM FOR RELIEF
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

64. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

65. The level of force employed by defendants SOLOMITO, CUCCO, and/or “JOHN DOE” #1-10 was objectively unreasonable and in violation of the constitutional rights of the plaintiff.

66. As a result of the foregoing, plaintiff sustained, bodily injuries, to, *inter alia*, his fingers, shoulder, wrist, back, and face, which required medical treatment.

SEVENTH CLAIM FOR RELIEF
FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

67. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

68. The defendants SOLOMITO, CUCCO, and/or “JOHN DOE” #1-10 had an affirmative duty to intercede when plaintiff’s constitutional rights were being violated in defendants’ presence by the use of excessive force and by misrepresenting and falsifying evidence regarding the circumstances surrounding plaintiff’s arrest throughout all phases of the criminal proceedings.

69. Defendants SOLOMITO, CUCCO, and/or “JOHN DOE” #1-10 further violated plaintiff’s constitutional rights when they failed to intercede and prevent the violation or further violation of plaintiff’s constitutional rights and the injuries or further injuries caused as a result of said failure.

70. As a result of defendants SOLOMITO, CUCCO, and/or “JOHN DOE” #1-10’s failure to intercede when plaintiff’s constitutional rights were being violated in defendants SOLOMITO, CUCCO, and/or “JOHN DOE” #1-10’s presence, plaintiff sustained, *inter alia*,

physical and emotional injuries, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

EIGHTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

71. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

72. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

73. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- iii. fabricating evidence in connection with their prosecution in order to cover up police misconduct; and,
- iv. strip searching individuals without an individualized reasonable suspicion that they are concealing weapons, drugs, and/or contraband based on the particular characteristics of the individual and/or the circumstances of the arrest; and,
- v. utilizing excessive force in effectuating arrests; and,
- vi. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and,
- vii. failing to take reasonable steps to control and/or discipline police officers who lie and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

74. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiff.

75. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiff as alleged herein.

76. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.

77. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiff's constitutional rights.

78. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.

79. The acts complained of deprived the plaintiff of his right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon him; and
- D. To receive equal protection under the law.

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and

- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
October 24, 2018

BY: _____/S_____
ILYSSA FUCHS
JOSHUA FITCH
GERALD COHEN
COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

ATTORNEY'S VERIFICATION

ILYSSA S. FUCHS, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That she is a member of the law firm of COHEN & FITCH, LLP the attorneys for plaintiff JAHSHON JOSEPH in the within entitled action.

That your deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof, and that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not currently residing within the county wherein deponent maintains his office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
October 24, 2018

_____/S_____
Ilyssa S. Fuchs